

24PSCV01631 24PSCV01631

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-09

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Case Number: 24PSCV01631 Hearing Date: September 9, 2026 Dept: O

DEFENDANT

WEST COVINA UNIFIED SCHOOL DISTRICT'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT is TBD.

Background

This

is a discrimination case. Plaintiff DENNIS ROWLAND alleges the following against Defendant WEST COVINA UNIFIED SCHOOL DISTRICT ("Defendant" or the "District"): Plaintiff, who is over 40 years old, from around October 2022 to the present time, was subject to a racially hostile working environment. Specifically, Plaintiff focuses on a racial slur used on the campus. On one occasion, he was called the derogatory racial slur by an employee; in another the word was scrolled on the wall of a room he was cleaning; and in another the word has been scribbled on the school's walls. Defendant has not eliminated the use of the word.

On

May 20, 2024, Plaintiff filed suit asserting the following causes of action (COAs):

1.

Discrimination Based On Age In Violation Of Feha

2.

Discrimination Based On Disability In Violation Of Feha

3.

Failure To Accommodate In Violation Of Feha

4.

Failure To Engage In A Good Faith Interactive Process In
Violation Of Feha (Against All Defendants)

5.

Retaliation In Violation Of Feha

6.

Failure To Take All Necessary Steps To Prevent
Discrimination, Harassment, And Retaliation In Violation Of Feha

7.

Discrimination Based On Race (Against All Defendants) In
Violation Of Feha

8.

Discrimination Based On Color In Violation Of Feha

9.

Slander And Defamation

10. False Light

11. Negligent Hiring,
Supervising Or Retention

12. Wrongful

Demotion/Termination Of Public Policy

13. Violation Of Labor

Code

14. INTENTIONAL

INFLICTION OF EMOTIONAL DISTRESS

On

April 8, 2025, Defendant filed a demurrer with a motion to strike, which on
5/21/25 was sustained with leave to amend. (The court did so largely as the

conclusion was devoid of the necessary factual allegations which the opposition tried to cure.)

On

June 9, 2025, a first amended complaint (FAC) was filed.

On

May 18, 2026, a second amended complaint (SAC) was filed for:

1. Discrimination Based on Age (Gov. Code § 12940(a))

2. Discrimination Based
on Disability (Gov. Code § 12940(a))

3. Failure to
Accommodate (Gov. Code § 12940(m))

4. Failure to Engage in
a Good Faith Interactive Process (Gov. Code § 12940(n))

5. Retaliation (Gov.
Code § 12940(h))

6. Failure to Prevent
Discrimination and Harassment (Gov. Code § 12940(k))

7. Discrimination Based
on Race (Gov. Code § 12940(a))

8. Discrimination Based
on Color (Gov. Code § 12940(a))

9. Slander and
Defamation

10. Wrongful Demotion in
Violation of Public Policy

11. Violation of Labor
Code § 1102.5

12. Intentional

Infliction of Emotional Distress

On

June 17, 2026, a demurrer was filed.

On

July 27, 2026, an opposition was filed.[1]

On

July 28, 2026, a reply was filed.

Discussion

The

District demurs to the entirety of the complaint on a variety of grounds largely based upon the COAs failing to state sufficient facts (e.g., Plaintiff fails to allege facts to show he suffered an adverse employment action or any other circumstance that would suggest any sort of discriminatory motive on the District's part or that Plaintiff fails to identify the District's actions or inactions that would give rise to District liability). For purposes of this demurrer, there is one dispositive issue: whether Plaintiff filed a claim under the Government Claims Act.

As

argued in the demurrer, prior to filing suit for damages against a public entity, a party must present a claim to the public entity alleged to have caused the damages. (Gov. Code §§ 910 et seq; § 945.4.) The claim must include, inter alia, the circumstance of the transaction and a general description of the injury. (Gov. Code § 910, subds. (c), (d).) Courts have been clear: "If a plaintiff relies on more than one theory of recovery against the governmental agency, each cause of action must have been reflected in a timely claim." (Fall River Joint Unified School District v. Superior Court (1998) 206 Cal.App.3d 431, 434 [theory omitted from Government Code claim was barred.].) The claim must give the government "an opportunity to investigate and evaluate its potential liability." (Id. at 435–436.)

Here,

the only allegation regarding such claim is as follows: "A timely tort and FEHA

claim was filed and rejected by the District. Plaintiff has exhausted all required administrative remedies before filing this Complaint.” (SAC ¶ 3.) In opposition, for the first time, Plaintiff argues that documents submitted “with Plaintiff’s concurrently filed Request for Judicial Notice and the Declaration of Mansfield Collins, the Civil Rights Department issued Plaintiff’s right-to-sue notice on May 20, 2024 (CRD Matter No. 202405-24791921), and Plaintiff filed this action that same day, comfortably within the one-year limitations period.” However, no request for judicial notice is attached to the opposition/separately filed; the District also did not receive such documents. (The docket also not provide any supplemental RJN.)

To the extent that Plaintiff cites to State of California v. Superior Court (2004) 32 Cal.4th 1234, 1243 to support their position that a “plaintiff need only allege facts demonstrating or excusing compliance with the claim-presentation requirement,” that is what the case held, but it is not what Plaintiff has done. In fact, in that case, the plaintiff pled slightly more facts and the state’s high court deemed the allegations insufficient. There the plaintiff alleged “that plaintiff had submitted a claim to the Office of the Attorney General, which “represented that [it was] authorized to accept service for the State Board of Control for the State of California” and “led [plaintiff] to believe that [he was] serving the State Board of Control.” The complaint further alleged that plaintiff “received telephonic notice that there were small errors contained in the original claim and was requested to file an Amended Claim.” According to the complaint, “an Agent of the Attorney General represented to [plaintiff] that she would accept service of said amended claim, and that the requested changes would correct any errors concerning said claim.” As requested, plaintiff filed an amended claim. The complaint then alleged that plaintiff only learned that the Office of the Attorney General—rather than the State Board of Control—had been mistakenly served over one year after he discovered he had lung cancer.” (Id. at p. 1238.) Going through an overwhelming amount of statutory interpretation and case law, the court said more was needed and that “requiring plaintiffs to allege facts sufficient to demonstrate or excuse compliance does not deprive them of their due process rights or unfairly bar just claims.” (Id. at p. 1245.) Accordingly, what this court is asking is consistent with the overwhelming amount of case law: Plaintiff need not allege strict compliance with the statutory claim presentation requirement just substantial compliance, the latter which has not been demonstrated. (Ibid.)

If

this was in advertent error and the District is amenable, the court is inclined to continue the matter for said document(s) to be filed.

Conclusion

Based

on the foregoing, the hearing is TBD.

[1] The opposition was untimely (hence why the court continued the hearing), and Plaintiff admits that much. The issue then is whether the court should exercise its discretion to overlook the untimeliness due to an "Through an inadvertent calendaring and filing error." The court will consider the opposition because sustaining the demurrer without addressing the opposition would likely be an abuse of discretion and require more motion(s). Thus, to hear the case on its merits, the court will address the opposition.